



SPONSOR: Rep. K. Williams & Rep. Michael Smith & Sen. Poore &
Sen. Richardson
Reps. Dukes, Gorman, Griffith, Bush, Romer; Sens.
Hocker, Lawson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 27

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO THE DELAWARE ANTI-
TRAFFICKING ACTION COUNCIL.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 787, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 787. Trafficking an individual, forced labor and sexual servitude; class D felony; class C felony; class B felony;
4 class A felony.

5 (k) (4) Meetings; quorum; officers; committees; procedure.

6 a. The Council shall meet at least 4 times per year. ~~Thirteen~~ Ten members constitute a quorum. Except as
7 set forth under paragraph (k)(5) of this section, the Council may take action upon the affirmative vote of a majority
8 of Council members present at a meeting.

9 f. 3. The Council shall include in the annual report ~~that it submits under paragraph (k)(4)f.1. of this~~
10 ~~section how the Council spent any state funds received for the previous fiscal year.~~ an explanation of the spending
11 of any state, federal, or other funds received. For purposes of this paragraph (k)(4)f.3., "state funds" means any
12 state money allocated to the Council other than funding for staff positions.

13 4. ~~At each full council meeting, the Council shall provide a report to meeting attendees on how it has,~~
14 ~~since the previous full council meeting, spent any state funding received.~~ [Repealed.]

15 g. The Council may hold a virtual meeting in compliance with § 10006A of Title 29, except that the
16 Council is permitted to have a staff member present at an anchor location in lieu of or in addition to having a
17 member of the council present.

18 (5) a. The Council shall employ an Executive Director to be appointed by the Chair with approval of a
19 ~~quorum~~ majority of the full membership of the Council. The Executive Director will serve at the pleasure of a ~~quorum~~
20 majority of the full membership of the Council. A vacant position is not counted for purposes of calculating full
21 membership of the Council under this paragraph (k)(5).

22 c. ~~Subject to the approval of a quorum of the Council and within~~ Within the limits of any appropriation
23 made by the General Assembly or available funding from another funding source, the Executive Director of the
24 Council shall employ staff and contract for services as necessary to carry out the functions of the Council.

SYNOPSIS

This Act makes changes to the operating requirements for the Delaware Anti-Trafficking Action Council.

It reduces the members required for quorum from 13 to 10. Since the quorum requirement has been reduced to less than a majority of the Council, the bill also specifies that the Council may generally take action upon the vote of a majority of members present at a meeting, but that a majority vote of the Council members is required to approve the appointment of an Executive Director. Consistent with current practice, the Executive Director has the authority to hire staff and contract for services within the limits of available funds.

The Act also revises the reporting on funds spent to be part of the annual report and include state, federal, or other funding received by the Council other than State-funded positions. At the present time, the Council does not receive state funding other than allocated personnel positions.

Finally, the Act allows the Council to have a virtual meeting with a physical location open to the public (anchor location) so long as a staff member of the Council is present at the anchor location. Without this authorization, a member of the Council would be required to attend at the anchor location in order to comply with the State's open meeting rules.